



FEDERAL BUREAU OF INVESTIGATION



JUSTIFICATION FOR LIMITED COMPETITION/SIMPLIFIED ACQUISITION

JUSTIFICATION AND APPROVAL FOR ACQUISITIONS UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

In accordance with Federal Acquisition Regulation 13.106-1(b)(1), I hereby determine that the CyberSecure IPS License Agreement is available from only one manufacturer (brand name only) and competition is precluded as there are no substitutes available.

1. This acquisition is restricted to the following manufacturer:

Company: CyberSecure IPS

Company Address: 3 Bethesda Metro Center Suite 700 Bethesda, MD 20814

Company Point of Contact and Phone Number: Jason Aguilar (719) 659-6048

**2. The Cybersecure IPS is estimated to cost xxx and is required to be performed
01/26/2025-01/25/2026**

The proposed action will be a one time, firm fixed price, sole source only contract for the provision of CyberSecure equipment and installation. The agreement must include 24/7/365 tech support, software updates, patches, custom configurations.

3. *[Insert one of the paragraphs listed below, depending on the justification]*

The license must provide comprehensive coverage for product upgrades and technical support under a single, common set of agreements, processes and tools. The Gold package is tailored specifically for customers protecting critical infrastructure assets and require guaranteed response service level agreements in place to ensure priority case escalation. The Gold package also includes full hardware warranty coverage for the StopLight Data Shutoff Panel. This contract will allow for the purchase of services or goods classified as other direct costs (ODC) as identified herein. Any ODCs not documented in advance of contract award will require written approval by the FBI contracting officer (CO) prior to the purchase. Requests for approval must specifically identify the services or goods to be procured and the estimated price of each.

Justification is required for all ODCs that demonstrate that the goods or services to be purchased are in direct support of the contract. Invoices submitted for payment that include ODCs must specifically identify the services or goods purchased and break out in detail the costs associated with the ODCs. Invoices containing ODCs not listed in the

contract or identified and approved by the CO in advance of billing will be treated as improper invoices and will not be paid. Similarly, invoices that include ODCs listed in the contract but fail to specifically identify them and elucidate the costs in detail, will be treated as improper and will not be paid

4. Check and fill in all that are applicable for an Open Market Buy:

- ☒ The material or service must be compatible in all aspects (form, fit, and function) with existing systems presently installed. The current equipment CyberSecure IPS [Click here to enter text.](#)and the new item/service must coordinate, connect, or interface with the existing system by and the annual maintenance and troubleshooting support for all the IT Infrastructure and electronics.
- ☐ A patent, copyright, proprietary data, or licensing agreement limits competition. The proprietary data are described as follows:

<Insert description>
- ☒ These are "direct replacement" parts/components for existing equipment.
- ☐ Other information to support a brand name only buy:

IF GSA FAR Part 8, complete items 6-7

5. A determination by the ordering activity Contracting Officer that the order represents the best value consistent with FAR 8.404(d).

The contracting officer will determine, after considering the level of effort and the mix of skills available for the tasks needed, that the proposed order or BPA represents a reasonable total price and will be the best value for the FBI.

6. A description of the market research conducted among schedule holders, and the results of the research. A statement must be made that the supplies and services are available from the FSS.

The FBI will publicize this requirement on the SAM. GOV website. This announcement will give an opportunity for other vendors to demonstrate their ability to meet the FBI's specific needs through a submission of technical capabilities and cost information.

7. Any other facts supporting the limited source justification.

GSA FAR Part 8 is not applicable in this requirement.

8. A statement of the actions, if any, the agency will take to remove or overcome any barriers that led to restricted consideration before any subsequent acquisition for supplies and services is made.

The Government will continue to research the market to obtain as many available sources as required in accordance with the FAR to ensure that there are other vendors out there that can satisfy this requirement. In addition, the customer will do due diligence in ensuring that barriers to competition are avoided to ensure we obtain the best value for the government.